
Planning Addendum

SHLAA, 5YHLS, Paragraph 11 and Sustainability

Land at Sladbury's Lane

Purpose

This Planning Addendum is submitted to supplement the Planning Statement and Policy Compliance Justification already on file. It focuses specifically on (i) the Council's most recent Strategic Housing Land Availability Assessment (SHLAA, December 2025) evidence on housing need and five-year supply, and (ii) how the proposal supports delivery in the District's most sustainable growth location (Greater Clacton), in accordance with the spatial strategy and sustainable development objectives.

SHLAA Evidence – Housing Need and Five-Year Supply Context

The Council's SHLAA (December 2025) updates the evidence base to a 1 April 2025 base date and confirms that, for the updated plan period 2025–2042, Tendring's housing requirement is 18,071 homes, equivalent to 1,063 dwellings per annum using the Standard Method.

The SHLAA also explains that the five-year housing land supply position changes materially once the adopted Local Plan reaches five years old. In particular, it records that:

- Against the adopted Local Plan OAN of 550 dpa, the Council can demonstrate 6.22 years supply; but
- From 26 January 2026, using the Standard Method requirement, the Council would be able to demonstrate 3.22 years supply.

In this context, proposals that are deliverable, located in sustainable settlements, and capable of contributing to housing delivery in the near term should be afforded positive weight, consistent with the SHLAA's acknowledgement that additional land and delivery will be required through the Local Plan Review period to respond to the updated need figure.

SHLAA Evidence – Strategic Focus on Clacton / Greater Clacton

The SHLAA's settlement analysis identifies Clacton as the largest planned recipient of growth in the District for 2025–2042, with 4,525 dwellings (approximately 23.19% of the district total) and an average anticipated delivery rate of 266 dwellings per annum.

The application proposals align with this evidence-led growth strategy by providing housing within the Greater Clacton area, where services, infrastructure and opportunities are most extensive and where housing delivery is expected to be concentrated.

Policy SPL1 and SPL2

Clacton is identified as a Strategic Urban Settlement under SPL1 and is therefore the District's most sustainable location for growth due to its concentration of jobs, services, facilities and transport infrastructure. The document explains that the site, whilst technically beyond the SDB, is directly adjacent to the existing built form and functions as part of the wider Clacton urban area rather than an isolated countryside location, enabling residents to access day-to-day services and public transport in a sustainable pattern of development.

In relation to SPL2, the document clarifies that the purpose of settlement boundaries is to manage growth and prevent sprawl, not to prevent all development beyond boundaries. SPL2 expressly anticipates that proposals beyond the SDB will be assessed "in relation to the pattern and scale of growth" in SPL1, and the justification argues the proposal achieves this because it: (i) sits immediately adjacent to the settlement edge; (ii) forms a logical, well-contained extension; (iii) does not project beyond the prevailing built form lines; and (iv) remains contained such that it does not contribute to sprawl, with the Landscape Officer agreeing the site does not contribute to the wider Landscape Character Area or Strategic Green Gap.

Sustainability and Readiness to Come Forward

The Planning Statement confirms the site is located on the edge of Holland-on-Sea (part of the Clacton-on-Sea settlement), adjacent to the settlement boundary and

contained by development on two sides, with mature vegetation providing containment on the remaining boundaries. It identifies a wide range of services and facilities accessible from the site, including schools, shops, healthcare and public transport connections, with the railway station accessible by walking/cycling/bus.

The Policy Compliance Justification further explains that, whilst the site sits outside the defined Settlement Development Boundary, it is directly adjacent to the existing built form and functions as part of the Clacton urban area rather than an isolated rural site. It also records that proposals beyond the SDB are to be considered in relation to the settlement hierarchy and pattern/scale of growth (SPL1/SPL2), and sets out why the scheme represents a logical, well-contained extension that does not promote sprawl.

Taken together, the evidence demonstrates that the proposal is in a sustainable location, is capable of integrating with the existing settlement pattern, and is ready to come forward to contribute to housing delivery in the District's principal growth area.

Planning Balance

Paragraph 11 of the NPPF sets out the presumption in favour of sustainable development. For decision-taking, where the policies most important for determining the application are out-of-date, permission should be granted unless either specific protective policies provide a strong reason for refusal, or the adverse impacts would “significantly and demonstrably outweigh the benefits” when assessed against the Framework as a whole.

The SHLAA identifies a scenario in which (from 26 January 2026) the Council is expected to be unable to demonstrate a five-year supply when measured against the Standard Method requirement (3.22 years).

In those circumstances paragraph 11 is capable of being engaged, and the planning balance is accordingly weighted toward approval of sustainable housing proposals.

National policy is clear where (i) delivery is needed, (ii) the proposal is sustainably located, and (iii) impacts are appropriately mitigated that significant weight should be attached to the benefits of housing delivery, including the social objective of ensuring

a sufficient number and range of homes and the wider sustainability objectives of the NPPF.

Conclusion

The SHLAA confirms a materially higher housing requirement for 2025–2042 (18,071 homes / 1,063 dpa) and highlights the potential for a reduced five-year supply position when assessed against the Standard Method from 26 January 2026 (3.22 years).

The proposal is aligned with the SHLAA's growth distribution, delivering housing in Greater Clacton and delivers housing in the District's principal growth location in a manner consistent with the settlement hierarchy and the planned distribution of growth.

In sustainability terms, the site's strong functional relationship with the existing urban area, access to services and facilities, and contained settlement-edge form mean the scheme represents sustainable development in NPPF terms and is well-placed to attract significant positive weight in the planning balance (including where paragraph 11(d) applies).